

Plaintiff's fourth cause of action as alleged is vastly similar to that of seeking contempt relief under 11 U.S.C. § 524. The exclusive remedy for such is civil contempt enforced through the bankruptcy court that issued the discharge order. As Plaintiff has alleged in their opposition that the defect may be cured through amendment and has provided details on how they might cure the defect, leave to amend is granted.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

26CV-01425

Yumeng Chen vs Sungrow USA Corporation, et al.

Motion to Strike Portions of Plaintiff's First Amended Complaint

Defendant's motion to strike the prayer for punitive damages in the first amended complaint is GRANTED WITH LEAVE TO AMEND.

Plaintiff does not plead sufficient facts under Civil Code section 3294 to support a prayer for punitive damages. Accordingly, the court strikes Prayer No. 3 (FAC, 22:21, No. 3) from the first amended complaint. As the defect may be cured by alleging additional facts, leave to amend is granted.

Plaintiff may file their amended complaint to allege additional facts to support punitive damages at any time more than six (6) months before trial.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

26CV-03229

Caliber Contracting Services, Inc. vs County of Merced, et al.

Order to Show Cause re: Preliminary Injunction

Appearance required. Hearing will commence upon completion of the remaining matters on the 8:15 a.m. calendar.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 09, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

24CV-04467	LVNV Funding LLC vs. Marlene Duarte
------------	-------------------------------------

Case Management Conference

Appearance required.

25CV-04006	Jefferson Capital Systems, LLC vs. Maria Ayala Sanchez
------------	--

Motion for Order Deeming Admitted Requests for Admissions

The unopposed motion by plaintiff Jefferson Capital Systems, LLC for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Maria Ayala Sanchez is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served responses to the requests for admission. The Court notes that Plaintiff did not request monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.
